

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS-WRIGHT CORPORATION
d/b/a Curtiss Wright Electro Mechanical
Corporation d/b/a Curtiss-Wright Steam
and Air Solutions,
STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

DEFENDANTS' PETITION FOR ATTORNEYS' FEES

Defendants Curtiss Wright Electro Mechanical Corp. d/b/a Curtiss-Wright Steam and Air Solutions, Stephanie Lanier, and Shane Sablitsky, by and through undersigned counsel, respectfully submit this Petition for Attorneys' Fees pursuant to Federal Rule of Civil Procedure 37(b)(2)(C), Federal Rule of Civil Procedure 37(c), Local Civil Rule 54.02, and the Court's May 4, 2026 Order taking Defendants' request for attorneys' fees under advisement.

Defendants seek an award of attorneys' fees in the amount of \$17,360.00, reflecting the reasonable fees incurred in preparing Defendants' Motion for Sanctions, ECF No. 292, and related briefing necessary to obtain relief from Plaintiff's discovery misconduct.¹ This figure does not include those fees incurred because of Plaintiff's willful failure to comply with the Court's December 15, 2025, discovery order, including fees incurred attempting to enforce Plaintiff's

¹ The \$17,360.00 figure is based on a \$350 blended rate repeatedly found reasonable in this District for similar work. Actual attorneys' fees incurred exceed this figure.

discovery obligations prior to moving for sanctions. In support of this Petition, Defendants rely on their accompanying Affidavit of Attorneys' Fees and state as follows.

I. INTRODUCTION

This fee petition follows the Court's finding that Plaintiff willfully violated the Court's December 15, 2025, discovery order and that sanctions were necessary to remedy the resulting prejudice to Defendants. In its May 4, 2026, Order, the Court adopted the Report and Recommendation in relevant part, imposed sanctions, and expressly took Defendants' request for attorneys' fees under advisement. ECF No. 316 at 6–8.

Defendants now submit the fee petition contemplated by their sanctions motion. Defendants seek only those reasonable fees incurred as a result of Plaintiff's failure to comply with the Court's discovery order, including time spent seeking sanctions and briefing the issues created by Plaintiff's noncompliance. The requested award is warranted under Rule 37 because Plaintiff's conduct was not substantially justified, no circumstances make an award unjust, and the Court has already determined that Plaintiff acted willfully, prejudiced Defendants, and made sanctions necessary. ECF No. 316 at 6–8.

II. RELEVANT BACKGROUND

On December 15, 2025, the Court ordered Plaintiff to produce discovery directly related to her claims and alleged damages, including financial records, case-related social media materials, documents from the flash drive submitted to the Court, Naval Inspector General materials, and full and fair discovery into her emotional-distress claims if she elected to continue pursuing them. ECF No. 292 at 2–4; ECF No. 316 at 4–5.

Plaintiff did not comply. After the Order, Plaintiff produced only one YouTube video and screenshots of some text messages, despite Defendants' correspondence identifying the

outstanding Court-ordered discovery and Defendants' follow-up after the January 30, 2026, deadline. ECF No. 292 at 4–5; ECF No. 316 at 5.

Defendants moved for sanctions, including attorneys' fees incurred in pursuing relief from Plaintiff's noncompliance. ECF No. 292 at 19. On May 4, 2026, the Court found that Plaintiff willfully failed to comply with the December 15 Order, that her noncompliance severely prejudiced Defendants, and that sanctions were necessary. ECF No. 316 at 6–8. The Court took Defendants' request for attorneys' fees under advisement. *Id.* at 8.

III. LEGAL STANDARD

Rule 37(b)(2)(C) provides that, instead of or in addition to sanctions listed in Rule 37(b)(2)(A), “the court must order the disobedient party, the attorney advising that party, or both to pay the reasonable expenses, including attorney’s fees, caused by the failure,” unless the failure was substantially justified or other circumstances make an award unjust.

Rule 37(c)(1)(A) similarly permits the Court to order payment of reasonable expenses, including attorneys' fees, caused by a party's failure to provide information required by Rule 26(a) or (e).

Local Civil Rule 54.02 requires attorney-fee petitions to comply with *Barber v. Kimbrell's, Inc.*, 577 F.2d 216 (4th Cir. 1978), and to state any exceptional circumstances and the opposing party's ability to pay. The Fourth Circuit considers the following *Barber* factors in assessing the reasonableness of a fee request:

1. the time and labor required;
2. the novelty and difficulty of the questions;
3. the skill required to properly perform the legal services;
4. the attorney's opportunity costs;
5. the customary fee for like work;
6. the attorney's expectations at the outset of the litigation;
7. time limitations imposed by the client or circumstances;
8. the amount in controversy and results obtained;

9. the experience, reputation, and ability of counsel;
10. the undesirability of the case;
11. the nature and length of the professional relationship with the client; and
12. awards in similar cases.

IV. ARGUMENT

A. *An Award of Fees is Appropriate Under Rule 37.*

Rule 37(b)(2)(C) makes a fee award mandatory where a party fails to obey a discovery order unless the noncompliance was substantially justified or other circumstances make an award unjust. Neither exception applies here.

The Court has already resolved the core issues necessary to support a fee award. Plaintiff was ordered to produce discovery by January 30, 2026. ECF No. 292 at 2–4; ECF No. 316 at 4–5. She failed to do so. ECF No. 292 at 4–5; ECF No. 316 at 5–7. The Court found that her failure was willful, that Defendants were severely prejudiced, and that sanctions were necessary. ECF No. 316 at 6–8. The Court also rejected Plaintiff’s explanation that she was justified in noncompliance because she believed the discovery was overbroad, intrusive, or harassing. *Id.* at 1, 5–7.

Those findings foreclose any argument that Plaintiff’s conduct was substantially justified. Plaintiff’s disagreement with the Court’s discovery ruling did not permit her to disobey it. Defendants should not be required to absorb the fees incurred to enforce a discovery order Plaintiff knowingly disregarded. ECF No. 292 at 2–5, 19; ECF No. 316 at 5–8.

B. *The Requested Fees Were Caused by Plaintiff’s Noncompliance.*

The fees sought here were incurred because Plaintiff failed to comply with the December 15 discovery order and forced Defendants to seek sanctions. Defendants’ request for sanctions was necessary to address Plaintiff’s failure to provide discovery that the Court had already ordered. ECF No. 292 at 4–5, 10–11; ECF No. 312 at 3–12; ECF No. 316 at 5–7.

Defendants seek fees for the following categories of work:

1. preparing Defendants' Motion for Sanctions;
2. reviewing Plaintiff's Opposition and Oojections relating to the sanctions request;
3. preparing Defendants' Reply in support of sanctions; and
4. Reply to Plaintiff's Objections to the Magistrate Judge's Report and Recommendation.

Defendants have limited their request to fees arising from Plaintiff's discovery noncompliance, excluding all unrelated time entries. Similarly, Defendants are not seeking fees for efforts to enforce Plaintiff's discovery obligations that occurred before or outside the context of the Motion for Sanctions.

C. The Requested Hourly Rates Are Reasonable.

Defendants request fees based on the following hourly rates:

Timekeeper	Position	Years of Experience	Blended Hourly Rate	Hours	Total
T. Chase Samples	Principal	17	\$350	10.1	\$5,373.20
Joseph V. Valenza	Associate	2	\$350	39.5 ²	\$12,640.00
Total				49.6	\$18,013.20
Requested Fees			\$350	49.6	\$17,360.00

The requested rates are reasonable for employment litigation and federal discovery/sanctions practice in the District of South Carolina. Defense counsel have substantial experience in employment litigation, federal discovery, and motion practice. The fees charged in this matter are below defense counsel's customary rates for comparable matters in this District. Even so, Defendants seek a fee award based on a blended rate that reduces fees beyond the already-reduced rates. That requested rate is consistent with rates approved by courts in this District for similar work. District of South Carolina authority supports the requested \$350 blended hourly

² The total includes 17.9 hours of work performed in connection with Defendants' Motion for Sanctions, 5.4 hours devoted to the Reply in Support of the Motion for Sanctions, and 16.2 hours associated with replying to Plaintiff's Objections to the Report and Recommendation.

rate.³ In *Beaumont v. Branch*, Judge Norton awarded Rule 37 fees for a single motion to compel and approved \$375/hour for a senior associate who performed most of the work, with limited partner involvement at \$450/hour. The court characterized those rates as at the higher end of the local range but reasonable. *See Beaumont v. Branch*, U.S. Dist. LEXIS 141946 at 40-42 (D.S.C. Aug. 9, 2024) (Norton, J.) (awarding Rule 37 fees for a single motion to compel using \$375/hour for senior-associate work and \$450/hour for partner review). Likewise, in *Ellington v. Hayward Baker*, Judge Norton used rates of \$350 and \$300 after surveying South Carolina employment-law fee awards.; *Ellington v. Hayward Baker, Inc.*, 2019 U.S. Dist. LEXIS 146139 *9-11 (D.S.C. Aug. 28, 2019) (Norton, J.) (using \$350/hour rate in contested fee award and recognizing South Carolina employment-law fee awards in the \$350–\$400/hour range). Accordingly, a blended \$350 rate for associate-drafted work subject to partner review is within the range accepted in this District, particularly where the hours are reasonable and the staffing avoided unnecessary partner billing. The requested rates are consistent with rates charged by attorneys of comparable skill, experience, and reputation for similar work in this District, as set forth in the accompanying affidavit.

D. The Hours Expended Were Reasonable.

The hours requested were reasonable in light of the issues presented and the procedural posture of the case. Defendants were required to analyze Plaintiff's post-order filings, identify the continuing deficiencies, prepare a sanctions motion addressing multiple categories of withheld discovery, respond to Plaintiff's arguments, and explain why Plaintiff's continued refusal to obey the Court's Order warranted sanctions. ECF No. 292 at 2–5, 10–19; ECF No. 312 at 3–12. Plaintiff's filings were extensive and frequently included unanticipated collateral issues and accusations that had to be addressed. ECF No. 312 at 5–9. The reasonableness of this work is

³ Defendants note that the requested blended rate reduces the attorneys' fees sought below the hourly rate charged to Curtiss Wright.

confirmed by the relief obtained. The Court adopted the R&R in relevant part, found that Plaintiff willfully violated the discovery order, found severe prejudice to Defendants, and imposed sanctions. ECF No. 316 at 6–8. The Court’s sanctions closely tracked the relief Defendants requested in the alternative, including dismissal of the emotional-distress claim, whistleblower retaliation claim, invasion of privacy claim, illegal-interception claim, and striking of emotional, compensatory, and economic damages. Compare ECF No. 292 at 17–19, with ECF No. 316 at 7–8.

Defendants have also exercised appropriate billing judgment. The time billed was reasonably necessary to obtain relief from Plaintiff’s discovery misconduct.

E. The Barber Factors Support the Requested Award.

The *Barber* factors support the requested award. First, the time and labor required were significant. Plaintiff’s noncompliance was not limited to a single discovery response or isolated document request. It involved multiple categories of court-ordered discovery, including financial records, documents related to alleged whistleblower complaints, materials submitted on the flash drive, social media materials, and discovery bearing on Plaintiff’s emotional-distress claims and damages. ECF No. 292 at 2–4; ECF No. 316 at 4–5. Plaintiff’s refusal to produce these materials affected multiple claims and damages theories. ECF No. 292 at 6–19; ECF No. 316 at 5–8. As a result, Defendants were required to address not only the fact of nonproduction, but also the relationship between the withheld discovery and the claims, defenses, and damages that remained in the case. Defendants also had to address Plaintiff’s repeated effort to justify noncompliance by reasserting objections the Court had already considered and resolved. ECF No. 312 at 3–12; ECF No. 316 at 5–7.

Second, although the Rule 37 standard is settled, the issues presented were fact intensive. Defendants were required to demonstrate that Plaintiff violated a clear discovery order, that her

violation was willful, that Defendants were prejudiced by the withheld discovery, that lesser sanctions would be ineffective, and that the requested sanctions were appropriately tailored to the claims and damages affected by Plaintiff's noncompliance. ECF No. 292 at 5–19 That required a careful review of the Court's December 15 Order, Plaintiff's discovery responses and post-order filings, Defendants' correspondence, the categories of discovery withheld, and the claims and damages asserted in Plaintiff's operative complaint. ECF No. 292 at 2–5, 10–19. Plaintiff's subsequent briefing also raised collateral issues and factual assertions that were not central to Defendants' original sanctions motion but nevertheless required a response on reply. ECF No. 312 at 3–12. Defendants were required to address those arguments to prevent Plaintiff from reframing the issue as a renewed challenge to the underlying discovery order, rather than what it was: a failure to comply with that order. ECF No. 312 at 3–5; ECF No. 316 at 5–7. Plaintiff's repeated collateral attacks, particularly in her Objections to the Report and Recommendation, unnecessarily expanded the scope of the briefing beyond what would ordinarily be required to reply to objections. ECF No. 312 at 5–12.

Third, the motion required skill in federal discovery practice, employment litigation, and sanctions briefing. Defendants' briefing required more than citing Rule 37. It required applying the Rule 37 factors to a complex employment case involving numerous statutory and common-law claims, identifying the prejudice created by missing discovery, and explaining why Plaintiff's withheld materials were material to Defendants' ability to evaluate and defend against her claims. ECF No. 292 at 10–19. Counsel also had to present the issues in a manner that distinguished between sanctions directed to specific claims and damages theories and the broader request for dismissal based on Plaintiff's willful disregard of the Court's authority.

Fourth, counsel's work on the sanctions motion necessarily displaced time that could have been spent on other client matters. The sanctions motion, reply briefing, and fee petition required attorney attention that would not have been necessary had Plaintiff complied with the Court's discovery order. That time was devoted to enforcing basic discovery obligations rather than advancing the merits of the case or performing work for other clients.

Fifth, the requested rates are reasonable and consistent with customary rates for comparable federal litigation work in this District. *See Beaumont v. Branch*, U.S. Dist. LEXIS 141946 at 40-42 (D.S.C. Aug. 9, 2024) (Norton, J.); *Ellington v. Hayward Baker, Inc.*, 2019 U.S. Dist. LEXIS 146139 *9-11 (D.S.C. Aug. 28, 2019) (Norton, J.). The requested rates therefore reflect billing judgment and are reasonable in light of counsel's experience, the nature of the litigation, and the skill required to obtain relief from Plaintiff's discovery misconduct.

Sixth, Defendants reasonably expected that Plaintiff would comply with court-ordered discovery and that sanctions briefing would not be necessary. Defendants propounded discovery, moved to compel only after Plaintiff failed to provide necessary responses, obtained a discovery order, and then attempted to secure compliance without further court intervention. ECF No. 292 at 2-5. The fees requested here were incurred only because Plaintiff failed to comply with the Court's Order and forced Defendants to seek sanctions. ECF No. 292 at 4-5, 19.

Seventh, Plaintiff's noncompliance imposed significant time pressures. Discovery had closed, the Court had stated that no further discovery extensions would be granted, dispositive motion deadlines were approaching, and Defendants needed relief before further merits proceedings. Plaintiff's refusal to provide court-ordered discovery placed Defendants in the position of having to prepare for the next phase of litigation (i.e., drafting the summary judgment

briefing) without the discovery necessary to evaluate Plaintiff's claims, damages, and evidentiary support.

Eighth, the amount involved and the results obtained support the requested award. Defendants obtained substantial relief. The Court imposed severe sanctions that substantially limited Plaintiff's remaining case, including dismissal with prejudice of several claims, striking categories of damages, and prohibiting Plaintiff from using withheld evidence. The relief obtained directly addressed the prejudice created by Plaintiff's noncompliance. Moreover, the attorneys' fees Defendants incurred to enforce Plaintiff's discovery obligations exceed the damages Plaintiff can now reasonably recover in this case, underscoring both the significance of Plaintiff's misconduct and the burden Defendants were forced to bear to obtain compliance-related relief.

Ninth, Defendants' counsel have the experience, reputation, and ability necessary to litigate federal employment matters and discovery disputes efficiently and effectively. Counsel's experience allowed Defendants to identify the prejudice caused by Plaintiff's withheld discovery, tailor the requested sanctions to the affected claims and damages theories, and present the Court with the factual and legal basis for meaningful relief.

Tenth, this case and the sanctions dispute were undesirable. Plaintiff has repeatedly moved for sanctions against Defendants and has made unfounded public accusations on social media against Defendants, the Court, and officers of the Court. The sanctions dispute was also rendered unduly burdensome by Plaintiff's repeated refusal to accept and comply with the Court's discovery rulings. Counsel was required to litigate not merely a discovery deficiency, but a continuing refusal to comply with a court order and repeated attempts to relitigate issues already decided.

Eleventh, the nature of the attorney-client relationship supports the reasonableness of the request. Defendants retained counsel to defend against Plaintiff's claims on the merits, not to incur

avoidable fees enforcing basic discovery obligations after a court order compelling production. The requested fees are limited to work made necessary by Plaintiff's noncompliance and do not seek a broader recovery of all fees incurred in the litigation.

Twelfth, the requested fees are consistent with awards in comparable Rule 37 matters where parties were forced to incur fees because of discovery noncompliance. Rule 37 expressly authorizes, and in appropriate circumstances requires, an award of reasonable expenses caused by failure to obey a discovery order. The requested award is therefore consistent with the purpose of Rule 37: compensating the party forced to seek relief, deterring discovery misconduct, and protecting the integrity of court orders.

F. No Exceptional Circumstances Make a Fee Award Unjust.

There are no exceptional circumstances that would make a fee award unjust. Plaintiff had notice of her discovery obligations, was given a clear deadline, and was warned of consequences. She nevertheless failed to comply. The Court has already determined that Plaintiff's conduct was willful and that Defendants were severely prejudiced.

Plaintiff's pro se status does not preclude a fee award. The Court expressly recognized that Plaintiff's pro se status does not excuse her from complying with Court orders. ECF No. 316 at 6–7. Nor would denying fees based on pro se status remedy the prejudice caused to Defendants or deter continued noncompliance. In fact, the issuance of a fee award would hopefully prevent the continued baseless filings that have permeated this case and unnecessarily, and unfairly, driven up the cost of litigation for Defendants.

G. Plaintiff's Ability to Pay.

Local Civil Rule 54.02 requires the petition to address the opposing party's ability to pay. Defendants are not in possession of information regarding Plaintiff's current financial condition because Plaintiff refused to produce the very financial discovery the Court ordered her to provide.

Defendants therefore cannot fully assess Plaintiff's ability to pay. However, it is known that Plaintiff evidently has had the funds sufficient to travel to jurisdictions across the country to serve subpoenas to third-party entities in this case.

The record does establish, however, that Plaintiff's inability to pay should not defeat an award. Plaintiff's refusal to produce financial records should not allow her to avoid the consequences of Rule 37. Defendants respectfully submit that the Court may either award the requested fees now or award fees subject to a payment schedule the Court deems appropriate after considering any competent financial evidence Plaintiff submits.

V. CONCLUSION

For the foregoing reasons, Defendants respectfully request that the Court award Defendants attorneys' fees in the amount of \$17,360.00 for reasonable fees incurred as a result of Plaintiff's willful failure to comply with the Court's December 15, 2025, discovery order, including the fees incurred in preparing Defendants' Motion for Sanctions⁴ and related briefing. Defendants further request such other and further relief as the Court deems just and proper.

Respectfully submitted this 18th day of May, 2026.

s/T. Chase Samples

T. Chase Samples (Fed. I.D. No. 10824)

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Chase.Samples@jacksonlewis.com

Email: Joseph.Valenza@jacksonlewis.com

JACKSON LEWIS P.C.

15 South Main Street, Suite 700

Greenville, SC 29601

Phone: 864-232-7000

ATTORNEYS FOR DEFENDANTS

⁴ Defendants' Motion for Sanctions and supporting filings, compelled by Plaintiff's open rejection of the Court's authority, required 29.4 hours of attorney work and generated \$10,701.20 in fees. Plaintiff then nearly doubled those costs by filing objections to the Magistrate Judge's Report and Recommendation that pointed to no actual error, relying instead on collateral attacks and an effort to recast her willful noncompliance as justified.

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Plaintiff,

v.

CURTISS WRIGHT ELECTRO
MECHANICAL CORPORATION d/b/a
Curtiss-Wright Steam and Air Solutions,
STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

CERTIFICATE OF SERVICE

The undersigned certifies that on May 18, 2026, a copy of the foregoing **DEFENDANTS' PETITION FOR ATTORNEYS' FEES** has been served upon the following by Email and United States Mail, postage prepaid and addressed to:

Debra Nelson

Pro Se Plaintiff

s/ T. Chase Samples

T. Chase Samples

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DECLARATION OF ATTORNEYS' FEES

I, T. Chase Samples, hereby declare under penalty of perjury that the following statements are correct and true to the best of my knowledge, information, and belief:

1. I am an attorney licensed to practice before all courts in the State of South Carolina and am admitted to practice before this Court. I am a Principal of the law firm of Jackson Lewis P.C., attorneys of record for Defendants Curtiss Wright Electro Mechanical Corp. d/b/a Curtiss-Wright Steam and Air Solutions, Stephanie Lanier, and Shane Sablitsky ("Defendants"), in the above-titled action. I have personal knowledge of the facts set forth below.

2. I submit this affidavit pursuant to the Court's May 4, 2026, Order granting Defendant's Motion for Sanctions (ECF No. 316) taking Defendants' request for attorneys' fees under advisement.

3. In total, I have spent 10.1 hours reviewing, revising, preparing, or doing other legal work directly related to Defendants' Motion for Sanctions (ECF No. 292), Plaintiff's Objections to the Report and Recommendation on Defendant's Motion (ECF No. 311), and related filings.

4. Joseph V. Valenza, my associate, has spent a total of 39.5 hours drafting, researching, reviewing, revising, preparing, and performing other legal work directly related to the same.

5. The time billed was reasonably necessary to obtain relief from Plaintiff's discovery misconduct.

6. My billable hourly rate for this matter is approximately \$500 per hour. Joseph V. Valenza's billable hourly rate for this matter is \$320 per hour. Consistent with the rates approved in this District, we are seeking a blended rate of \$350 per hour, which is below the amount billed to and paid by Curtiss Wright in this matter. I believe these rates are consistent with or less than hourly rates charged for comparable work by attorneys in the Greenville, South Carolina area.

7. Accordingly, Defendants respectfully request a total of \$17,360 in connection with our work on Defendant's Motions for Sanctions and related filings attempting to enforce Plaintiff's discovery obligations.

I DECLARE, PURSUANT TO 28 U.S.C. § 1746, UNDER PENALTY OF PERJURY THAT THE FOREGOING FACTS AND REPRESENTATIONS ARE TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE.

Dated: May 18, 2025

Signed: s/T. Chase Samples
T. Chase Samples

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DEBRA NELSON,

Plaintiff,

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CURTISS WRIGHT ELECTRO
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Debra Nelson

Pro Se Plaintiff

s/ T. Chase Samples

T. Chase Samples